

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: William MacLure	Team: Squad #6	CCRB Case #: 201801642	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 04/06/2017 6:00 AM	Location of Incident: § 87(2)(b)	Precinct: 69	18 Mo. SOL 10/6/2018	EO SOL 10/6/2018	
Date/Time CV Reported Tue, 02/27/2018 5:44 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Tue, 02/27/2018 5:44 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Stanley Mateo	5158	947804	NARCBBS
2. SGT Andrew Parfenoff	03603	938855	NARCBBS

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Steven Droluk	2725	952697	NARCBBS
2. CPT Robert Bava	00000	924929	NARCBBS

Officer(s)	Allegation	Investigator Recommendation
A.SGT Andrew Parfenoff	Abuse: Sergeant Andrew Parfenoff entered § 87(2)(b) § 87(2)(b) in Brooklyn.	§ 87(2)(b)
B.DT3 Stanley Mateo	Abuse: Detective Stanley Mateo entered § 87(2)(b) § 87(2)(b) in Brooklyn.	§ 87(2)(b)
C.SGT Andrew Parfenoff	Abuse: Sergeant Andrew Parfenoff searched § 87(2)(b) § 87(2)(b), in Brooklyn.	§ 87(2)(b)
D.DT3 Stanley Mateo	Abuse: Detective Stanley Mateo searched § 87(2)(b) § 87(2)(b), in Brooklyn.	§ 87(2)(b)
E.SGT Andrew Parfenoff	Abuse: Sergeant Andrew Parfenoff entered § 87(2)(b) § 87(2)(b), in Brooklyn.	§ 87(2)(b)
F.DT3 Stanley Mateo	Abuse: Detective Stanley Mateo entered § 87(2)(b) § 87(2)(b), in Brooklyn.	§ 87(2)(b)
G.SGT Andrew Parfenoff	Abuse: Sergeant Andrew Parfenoff searched § 87(2)(b) § 87(2)(b), in Brooklyn.	§ 87(2)(b)

Officer(s)	Allegation	Investigator Recommendation
H.DT3 Stanley Mateo	Abuse: Detective Stanley Mateo searched § 87(2)(b) § 87(2)(b), in Brooklyn.	

Case Summary

On February 27, 2018, § 87(2)(b) filed this complaint with the CCRB using the call processing system.

On April 6, 2017, at approximately 6:00 a.m., Det. Stanley Mateo and officers of Brooklyn South Narcotics executed a search warrant at § 87(2)(b) § 87(2)(b) t, in Brooklyn, under the supervision of Sgt. Andrew Parfenoff (**Allegations A through D: Abuse of Authority,** § 87(2)(b) After searching the first floor, Sgt. Parfenoff and Det. Mateo entered and searched § 87(2)(b) § 87(2)(b), in Brooklyn (**Allegations E through H: Abuse of Authority,** § 87(2)(g) § 87(2)(b) and § 87(2)(b) § 87(2)(b) were arrested for § 87(2)(b).

There was no video footage of this incident.

Findings and Recommendations

Allegation (A) Abuse of Authority: Sergeant Andrew Parfenoff entered § 87(2)(b) § 87(2)(b) t, in Brooklyn.

Allegation (B) Abuse of Authority: Detective Stanley Mateo entered § 87(2)(b) § 87(2)(b), in Brooklyn.

Allegation (C) Abuse of Authority: Sergeant Andrew Parfenoff searched § 87(2)(b) § 87(2)(b), in Brooklyn.

Allegation (D) Abuse of Authority: Detective Stanley Mateo searched § 87(2)(b) § 87(2)(b), in Brooklyn.

On April 6, 2017, at approximately 6:00 a.m., officers Sgt. Parfenoff, Det. Mateo, and officers of Brooklyn South Narcotics entered and searched § 87(2)(b) § 87(2)(b), in Brooklyn, pursuant to a valid no-knock search warrant, requested by Det. Mateo and signed by the § 87(2)(b) (Board Review 01). The warrant authorized the search of § 87(2)(b) § 87(2)(b), in Brooklyn.

As per NYS Criminal Procedure Law 690.50, officers may forcibly enter and search a location pursuant to a valid search warrant (Board Review 02).

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Allegation (E) Abuse of Authority: Sergeant Andrew Parfenoff entered § 87(2)(b) § 87(2)(b), in Brooklyn.

Allegation (F) Abuse of Authority: Detective Stanley Mateo entered § 87(2)(b) § 87(2)(b), in Brooklyn.

Allegation (G) Abuse of Authority: Sergeant Andrew Parfenoff searched § 87(2)(b) § 87(2)(b), in Brooklyn.

Allegation (H) Abuse of Authority: Detective Stanley Mateo searched § 87(2)(b) § 87(2)(b), in Brooklyn.

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It is undisputed that Sgt. Parfenoff and Det. Mateo entered and searched § 87(2)(b) § 87(2)(b) in Brooklyn.

§ 87(2)(b) was interviewed at her home, located at § 87(2)(b)

§ 87(2)(b) in Brooklyn, on April 18, 2018 (Board Review 03). This location, § 87(2)(b) in Brooklyn, is a two-family home that consists of a finished basement, which

includes a bathroom and a garage, and three additional floors. § 87(2)(b) rents out the first floor of the house. § 87(2)(b) resides in a duplex comprised of the second and third floors of the home. At the time of the incident, § 87(2)(b) was § 87(2)(b)'s first-floor tenant. § 87(2)(b)'s son, § 87(2)(b) and daughter-in-law, § 87(2)(b) resided in Staten Island, but were visiting § 87(2)(b) and staying overnight in the § 87(2)(b)-floor apartment. On April 6, 2017, at approximately 6:00 AM, § 87(2)(b) was asleep in her bedroom on the third floor, when she was awoken by § 87(2)(b) accompanied by Sgt. Parfenoff and Det. Mateo. § 87(2)(b) entered the bedroom and Sgt. Parfenoff and Det. Mateo remained in the bedroom's doorway. § 87(2)(b) informed § 87(2)(b) that police were at the residence. Neither Sgt. Parfenoff and Det. Mateo said anything to § 87(2)(b). § 87(2)(b) got out of her bed and got dressed. During this time, § 87(2)(b) believed § 87(2)(b) showed Sgt. Parfenoff and Det. Mateo the bedroom she uses for storage. When § 87(2)(b) finished getting dressed and exited her bedroom, she observed Sgt. Parfenoff and Det. Mateo in the storage bedroom. Sgt. Parfenoff and Det. Mateo exited the room and § 87(2)(b) then followed them downstairs to § 87(2)(b)'s apartment.

§ 87(2)(b) refused to provide a statement to the CCRB (Board Review 04). § 87(2)(b) provided a phone statement on July 19, 2018, from § 87(2)(b), where he was incarcerated (Board Review 05). § 87(2)(b) and § 87(2)(b) were all staying in the § 87(2)(b)-floor apartment at the time it was searched. § 87(2)(b) and § 87(2)(b) were arrested and removed from the location. § 87(2)(b) learned later from § 87(2)(b) that the officers searched bedrooms on the § 87(2)(b) floor, even though they only had a search warrant for the § 87(2)(b)-floor apartment.

Sgt. Parfenoff was interviewed at the CCRB on August 8, 2018 (Board Review 06). While the officers conducted their search of the § 87(2)(b) floor, § 87(2)(b) told Sgt. Parfenoff that she lived at the location, knew that the drugs were located on the § 87(2)(b) floor, and that she would take him there. Sgt. Parfenoff, Det. Mateo, and § 87(2)(b) went to the second floor of the house via a staircase that was open with no doors. Sgt. Parfenoff stated that § 87(2)(b), in Brooklyn, was one household. Sgt. Parfenoff did not remember where the staircase was located inside the house. Sgt. Parfenoff and Det. Mateo encountered § 87(2)(b) upstairs in the house. Sgt. Parfenoff did not remember if § 87(2)(b) ever stated that she did not want the officers there. Something was recovered from upstairs, but Sgt. Parfenoff did not remember what. Sgt. Parfenoff denied that he was ever under the impression that the § 87(2)(b) floor was a separate apartment from the rest of the house. Sgt. Parfenoff was presented with a copy of the search warrant, and it was pointed out that the address on the search warrant was for the "§ 87(2)(b) Floor Apartment" of the location. Sgt. Parfenoff was also presented with the pre-warrant data entry form prepared by Det. Mateo, which noted, "§ 87(2)(b) floor apartment of a three story multi-dwelling residence." Sgt. Parfenoff stated he still did not remember ever believing that there were multiple apartments in the house. Sgt. Parfenoff did not remember if there was ever a discussion about getting an additional search warrant for other areas of the house.

Det. Mateo was interviewed at the CCRB on August 7, 2018 (Board Review 07). When Det. Mateo finished searching the § 87(2)(b) floor, Sgt. Parfenoff informed him that § 87(2)(b) said that § 87(2)(b) was hiding more narcotics in a bedroom on the § 87(2)(b) floor of the house and that she would take them there. Inside the kitchen on the first floor, there was a doorway that led to a staircase that led upstairs. § 87(2)(b) brought Det. Mateo and Sgt. Parfenoff upstairs. § 87(2)(b) did not have to unlock any doors to bring the officers upstairs. On the third floor, § 87(2)(b) pointed out two bedrooms and told the officers that the narcotics were in one of those bedrooms. Sgt.

Parfenoff and Det. Mateo searched the two bedrooms. § 87(2)(b) was asleep on the § 87(2)(b) floor when the officers got up there, but woke up. § 87(2)(b) stayed in her room while the officers were there. Det. Mateo did not have any conversation with § 87(2)(b). Det. Mateo did not recover any narcotics from the upstairs location, but recovered packaging materials commonly used for narcotics from one bedroom on the § 87(2)(b) floor. Det. Mateo did not search anywhere on the § 87(2)(b) floor. When asked where the search warrant was for, Det. Mateo stated that the search warrant was for the “§ 87(2)(b) floor apartment,” § 87(2)(e), § 87(2)(g).

Photos taken of § 87(2)(b), in Brooklyn, on April 18, 2018 (Board Review 08) show that there are two mailboxes on the house, and that there was a door at the top of the staircase between the first and second floor.

Building and Property information for § 87(2)(b), in Brooklyn, obtained via NYCityMap (Board Review 09), notes that the location has two residential units.

As per NYS Criminal Procedure Law 690.50, officers may forcibly enter and search a location pursuant to a valid search warrant (Board Review 02).

The search of two or more residential apartments in the same building is no different than searching two or more separate houses, People v. Henley, 135 A.D.2d 1136 (Board Review 10).

§ 87(2)(g)

§ 87(2)(g)

Civilian and Officer CCRB Histories

- This was § 87(2)(b)'s first complaint with the CCRB (Board Review 11).
- Sgt. Parfenoff has five allegations stemming from two complaints over his 13 year tenure with the NYPD, with no previously substantiated allegations. § 87(2)(b)
- Det. Mateo has 15 allegations stemming from four cases over his 10 year tenure with the NYPD.
 - Det. Mateo has four previous entry and search of premises allegations under CCRB case numbers 201600068 and 201402941. One entry and search allegation was substantiated in case number 201600068 and he received formalized training.

Mediation, Civil and Criminal Histories

- This case was not eligible for mediation because § 87(2)(b) and § 87(2)(b) were arrested.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date